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SUDAN

Human Rights Developments

The government of Sudan remained a gross human rights abuser although it took positive steps to address some abuses. Advances included the admission that abduction and forced labor (although applying the term "slavery" to this was decried) existed and required government action, ratification of the Chemical Warfare Convention, and permission for a U.N. needs assessment in of the Nuba Mountains. The sixteen-year civil war continued in the south, in the Nuba Mountains, and in the east of Africa's largest country between the Islamist government and against the National Democratic Alliance (NDA), a coalition of armed opposition movements. Settlement proved elusive because of difficult issues of religion and the state, economic and political marginalization of minorities, and the diversity of Sudan's Arab and African, Muslim and non-Muslim population of thirty million.

A major development in the south came from a "People-to-People" reconciliation process sponsored by the New Sudan Council of Churches in the south. The Nuer and Dinka, the two largest tribes in the south, were on opposite sides of the war since 1991 when the Sudan People's Liberation Movement/Army (SPLM/A) split. In March their representatives concluded a peace covenant, agreeing to specific human rights goals. The Nuer, seriously split by armed conflicts among and within Nuer sections that were partly fostered by the government, began to come together through the same process. This grassroots development, seen as the means to end debilitating south-south conflicts, could reduce the atrocities committed against Nuer and Dinka civilians by armed groups, while threatening the government's "divide and destroy" policy.

The Sudan People's Liberation Army, the principal armed movement of the south, committed its share of abuses. After the international community demanded the release of four captives, the SPLA reported they "died in cross fire." It permitted an ethnic conflict between Dinka SPLA forces and Didinga farmers to fester until it blew up. Efforts to establish an independent judiciary in SPLA-controlled areas were undercut by high-level interference.

Government Abuses

Torture remained a serious problem. A journalist badly tortured during a month of security detention showed visible wounds on release. The government did not accede to the Convention Against Torture, and amnestied former president Nimeiri on his return from exile when victims' families threatened to sue.

Impunity was the rule. The people of northern Wadi Halfa unsuccessfully demanded a public trial for a commander and forty soldiers who stormed a wedding party in July, beating the guests. A university student supporting the opposition was shot dead in December 1998 during clashes with Islamist students. Witnesses identified a member of the Islamist group Hamas as responsible, but there was no investigation.

The judicial system was instead used against political opponents of the government, whose fair trial rights were not respected. Fr. Hilary Boma, chancellor of the Archdiocese of the Catholic Church in Khartoum, Fr. Lino Sebit, and twenty-four others (six in absentia) were tried in a military court for conspiracy and sabotage; only one of the accused was in the military. The charges were based on

confessions defendants said were elicited through torture during which three detainees died. The court martial was adjourned midtrial in January 1999 for an appeal challenging its jurisdiction over civilians. The Constitutional Court ruled in late July that a military court had jurisdiction over civilian defendants at the discretion of the minister of justice. The minister told Human Rights Watch in August that he would transfer the case to a civilian court, and this measure was subsequently confirmed.

Conditions in the Omdurman Women's Prison were so bad that sixteen children living with their prisoner-mothers died of diseases inside the prison. The government released 827 of 1,200 women prisoners from the prison, built to house 200. Three Muslim women prisoners went on hunger strike to protest prison food.

The government permitted political associations to register after a ten year ban imposed when it took power through a military coup in 1989. It timed state assembly elections so soon after, however, that the newly registered political parties declined to present candidates, resulting in the continuance of one-party control of the National Congress (previously known as the National Islamic Front), into its tenth year in power. Most party leaders remained in exile, and most parties continued to function only from exile, objecting to the registration act's requirement of loyalty to the National Congress Party's version of an Islamic state.

The nongovernmental press exercised more freedom despite frequent suspensions by the government press council, until the president ordered the closure of an independent daily, *Al Rai Al Akhar*, on the eve of a mission by the U.N. special rapporteur on freedom of opinion and expression. The president objected to the frequently-suspended paper's supposedly sarcastic treatment of martyrdom, among other things.

The rights to freedom of assembly, association, and expression were violated through arrests and bans on meetings, protests, and unregistered organizations. In April, lawyers trying to hold a political meeting at the bar association were detained, although the only one tried and sentenced for "disturbing public peace and order" was acquitted on appeal. In Dongola, authorities jailed eight persons protesting the state's failure to maintain Nile embankments which had left 50,000 homeless. In September, eleven opposition politicians arrested for holding a press conference to announce a new (unregistered) party were acquitted of disturbing public order.

Two large Sufi Muslim religious brotherhoods, the Ansar and the Khatmiyya, were associated with the banned Umma and the Democratic Unionist Party (DUP) opposition parties. The religious leaders were intermittently detained and harassed, particularly the Ansar imams who insisted on preaching that the government was not correctly practicing Islam.

The government had a policy of harassment of Christian churches and believers. Apostasy, or conversion by Muslims to another faith, was a capital crime. A Nuban detained for apostasy in 1998 remained in prolonged arbitrary detention.

The top-level discourse of "jihad" created a climate of intolerance despite respect for all religions shown by some officials. The police dispersed a crowd of Islamists shouting insults over loudspeakers outside the Coptic Church in Khartoum. But police did not intervene when Islamist students attacked a Christian book display at a University of Khartoum event in February. Four Christians and three Muslims reportedly were injured. The Islamists destroyed the Christian materials, worth U.S. \$2,000, burning some books and throwing religious materials into the Nile. The army occupied the Catholic printing press, the only one in the garrison town of Wau, in December 1998, detaining seven, of whom one was a priest and another a religious brother; the two religious were held for twelve days without charges. The government expelled a Canadian Catholic priest working in the Khartoum slums without giving any reason.

The Khartoum state government continued to destroy Christian structures and prevent new Christian construction in the capital. In the past ten years it bulldozed thirty to fifty Christian churches, centers, and schools in the slums because they lacked construction permits. In fact the government rarely granted permits to Christian denominations to build anything, while freely granting permits for mosque construction. The Catholic Club was confiscated by the government in late 1998.

Two churches and schools of the Episcopal Church teaching, 1,400 children, were destroyed in a Khartoum suburb. Five Catholic schools in Khartoum North, serving 3,800 children, were scheduled for demolition but the children and their parents resisted. By August the state government appeared to target for closure all Catholic schools providing (free) primary through eighth grade education for 48,000 mostly southern and Nuba students in poor neighborhoods.

In June the government secured an eviction order requiring the Episcopal bishop and all other church personnel to vacate immediately Omdurman property it owned and used as diocesan headquarters. The church sued for trespass in 1997 when the health ministry reneged on agreements that its use of a church building for a child care center was only temporary. The ministry started new construction there without church permission, and was backed up by armed security agents. In 1999 the ministry produced a purported confiscation decree dated July 1997, of which the Episcopal Church did not receive notice. The case was appealed to the Supreme Court.

In western Kordofan, many officials targeted Christians and their centers. In one place, four Christian religious centers were burned down and fifty Christian youth were lashed by the authorities. Police ignored a complaint identifying suspects in the Popular Police Forces in the arson of one prayer center. Elsewhere, a tribal chief told Catholics that he did not want a Christian church in his area and that they should demolish their prayer center. His police conducted a mass arrest of all present in the center, including women and children, dragging them to the police station where many were beaten.

Sudan had the largest internally displaced population in the world, estimated at four million, almost half in Khartoum. Starting in 1992, several hundred thousand displaced were forcibly removed into deplorable conditions in four "temporarily authorized" displaced camps outside Khartoum. The government announced in 1999 that 230,000 living in one camp would be relocated to a new site to make way for a private agricultural scheme, despite concerns that conditions in the new site were not fit for human habitation.

Public order police frequently harassed women and monitored women's dress for orthodoxy. Women guards were posted outside universities to assure women students wore the prescribed baggy garments. In June the public order police raided a riverside picnic and detained twenty-five Nuba students whom a public order court convicted of publicly meeting without public order police permission. The nine women students also were convicted of wearing an indecent or immoral uniform (trousers). The court sentenced the students to forty lashes each and fines; the women were flogged despite a decree that women would no longer be flogged except for crimes such as adultery or drinking alcohol.

War-Related Abuses

Government of Sudan

The Land Mines Convention, signed in 1997, was not ratified and the government had not destroyed all antipersonnel landmines as required. The government refused the International Committee of the Red Cross (ICRC) access to those detained in connection with the conflict; failure to take rebel soldiers prisoner pointed to a policy of secret summary execution.

The government persistently bombed civilian installations and relief sites, killing and injuring civilians and destroying scarce infrastructure. It bombed a hospital in SPLA-held Yei more than fifteen times, with frequent civilian casualties. Other medical centers were bombed, some with cluster bombs in June. Despite the Sudan government's unilateral declaration of a comprehensive cease-fire until October 15, the government bombed the rebel-held Nuba Mountains in central Sudan in August, wounding twelve children and four women. Despite a mutual famine area cease-fire, on May 16, 1999, a government Antonov dropped twenty-four cluster bombs on Akak in Bahr El Ghazal, next to a relief food drop zone, killing a ten-year-old girl and injuring a boy.

Eastern NDA rebel areas reported that in January the government displaced 12,000 people through indiscriminate artillery and aerial bombardment. In March a government offensive in the east displaced 3,500 people from several villages which it burned. The government in turn accused the

NDA of displacing tens of thousands of civilians on the eastern front as well. Both sides used antipersonnel landmines.

The government also armed tribal militias to use as proxy fighting forces. It claimed that it did not violate the cease-fire when on January 28, 1999 sixty Arab Baggara militia members (muraheleen) attacked Bararud in Bahr El Ghazal on horseback, killing ten people and looting the medical compound and feeding center. Deniability wore thin when the muraheleen and government army jointly attacked the village of Akoch Payam in Bahr El Ghazal, killing thirty persons at an airstrip food distribution and abducting seventy-five persons to use as slaves.

The resurgence of slavery was an outgrowth of the war and the arming of the muraheleen, who were incorporated into the army in 1989. They were allowed to keep all cattle and people they captured as war booty while guarding the military's supply train to the south or on freelance raids.

The government denied all slavery allegations until May 1999, when it acknowledged the problem of "abduction and forced labor of women and children" and set up a committee to address it, including a Dinka nongovernmental activist experienced in locating and retrieving Dinka children from slavery. It held a three-day workshop in late July, attended by a diverse group. Its early work was marred by the security forces' detention of a Sudanese UNICEF employee researching slavery.

Western anti-slavery groups "redeemed" slaves; one group claimed to have freed a total of 15,400, at a maximum price of \$50 per head, with payments made to middlemen. UNICEF denounced buying human beings for any purpose.

In 1997, the government signed a Khartoum peace agreement with former rebel forces, and named Nuer ex-rebel leader Dr. Riek Machar head of the southern government prior to a southern self-determination referendum in four years. Dr. Machar claimed in 1999 that the government had materially breached the agreement. A chief complaint was that the government made Nuer warlord Paulino Matiep a general in the government army and supplied his militia, which repeatedly clashed in Unity state with Machar's ex-rebel army, the South Sudan Defense Forces (SSDF).

The government distrusted Dr. Machar partly because he supported the Nuer-Dinka reconciliation meeting held in March in Wunlit, Bahr El Ghazal. Thereafter, General Matiep purged Machar officials from public life: he expelled Unity state's elected governor; detained at his military base senior state officials and numerous others; and allegedly assassinated two state ministers, traders, and others.

Under the 1997 Khartoum peace agreement the SSDF had exclusive military and security control in the areas they were occupying when the agreement was signed, including the oil-rich Nuer area south of Bentiu, capital of Unity state. Government moves to station troops there in May 1999 sparked SSDF attacks. The oil companies withdrew from the oil fields south of Bentiu and have not returned as of this writing. Fighting raged up and down Unity state between the SSDF and Matiep; the government backed up Matiep with arms and air power. After the initial attack, the SSDF steered clear of attacks on government troops. Tens of thousands of Nuer civilians fled, many burned and looted out of their homes, as Matiep's forces killed and abducted young women; both sides recruited child soldiers. Many Nuer found sanctuary and assistance in Dinka areas with chiefs who had signed the Wunlit Nuer-Dinka peace and reconciliation agreement in March. In August, Dr. Machar, treading a very fine line, threatened to resign from the government because of its violations of the peace agreement.

By then, the government was celebrating the first shipment of crude oil exported from Sudan, which came from the Nuer oil fields north of Bentiu. The first sabotage of the 1,600 kilometer oil pipeline to the Red Sea occurred shortly thereafter. In September the SSDF and Matiep/government forces resumed fighting and a top Matiep commander staged a coup and captured the Matiep base, causing even more uncertainty. Kerubino Kuanyin Bol, a gross human rights abuser who switched sides several times, was killed.

In western Darfur, the sedentary Masaalit farmers, African Muslims, complained they were victims of nomadic Arab nomads' militias armed by the government. After the government gave thirty new government posts to Arabs, marginalizing the Masaalit majority, there were reports of hundreds of

nomad militia attacks on Masaalit villages, killing hundreds, displacing thousands, destroying villages and looting livestock as the nomads, facing repeated drought, migrated to Dar Masaalit earlier each year, before the Masaalit crops could be harvested.

In January 1999, during a confrontation, angry Masaalit farmers shot at Masaalit and Arab tribal heads who came to restore calm, killing an Arab chief. The Khartoum government claimed that the Masaalit were an SPLA fifth column, and sealed off Dar Masaalit. Reportedly the Arab militias then killed more than 2,000 Masaalit. The government set up special courts to try leaders of the clashes, sentencing fourteen people to death, and sponsored a tribal reconciliation conference which concluded that 292 Masaalit and seven Arabs were dead; 2,673 houses burned down; and large numbers of livestock looted, with the Masaalit suffering most. The Arab tribes refused to pay compensation. A peace pact was signed in June but the Masaalit complained of further militia attacks; one in July killed 309 people. About 29,500 fearful Masaalit refugees remained in eastern Chad, where the Arab militias reportedly came to kill eighty Masaalit refugees in mid-1999.

The Sudan-based and -supported Ugandan rebel group, the Lord's Resistance Army (LRA), committed gross abuses of human rights in its Sudanese camps and in Uganda against some 10,000 Ugandan children it abducted, including murder, torture, and sexual abuse. Sudan admitted after long denials that it helped the LRA, saying it did so in retaliation for Uganda's support of the SPLA.

SPLA

On February 18, 1999, the SPLA captured three government employees said to be "spies" and a Red Crescent tracing officer, and two ICRC expatriates with them, who strayed into SPLA territory. Although the ICRC personnel were released, the SPLA later claimed that all four Sudanese captives were killed during an unsuccessful rescue attempt. It refused to release the bodies, making it likely that the four had been murdered.

The Didinga of Chukudum in the Eastern Equatoria region of southern Sudan were deeply dissatisfied for years with the SPLA garrison in their town, claiming mistreatment by the Bor Dinka who dominated the garrison and whose families lived in nearby displaced persons camps. There was a history of summary executions and retaliations by both sides. On January 10, 1999, a personal clash between a Dinka SPLA officer and a Didinga SPLA officer resulted in the death of the Dinka officer. The next day, Didinga fled for the mountains, fearing retaliation. On January 13, fighting broke out, and the SPLA took the town. A peace-making delegation appointed by the SPLA was not heeded; the SPLA claimed the Didinga were in league with a government militia. In April, fighting started again. A cease-fire was finally declared in August and the SPLA agreed to remove landmines it planted in the area.

SPLM leaders admitted SPLA responsibility for food diversion at a U.N.-convened May meeting on the 1998 famine. They also sharply criticized international blunders. In Ajiep, a major relief distribution center during the famine, some 800 bags of food (fifty kilos/bag) were stolen from the airstrip, the work of warlord Kerubino's soldiers, police from Wau, and SPLA deserters. The SPLA was blamed for not restoring order after it was notified of this problem. In Ajiep only 41 percent of the food was left for the community after the chiefs, commissioners, and SPLA had taken their cut, and that lay undistributed for weeks. The SPLA took 30 percent, more than they needed to feed their troops, those at the meeting said. This was the area in which the diversion problem was the largest magnitude: Ajiep had the highest mortality rate during the famine.

Visitors to SPLA areas continued to see armed SPLA youth who looked younger than eighteen. Although UNICEF had a program for demobilization of child soldiers, the SPLA was not known to have demobilized any of the child soldiers in its ranks.

Marial Nuor, an SPLA major in military intelligence, was investigated by the SPLA after he detained elderly foreign nuns and a priest for two weeks in 1996, causing an international uproar. Marial, in charge of SPLA recruitment in Yirol, had allegedly also killed two soldiers, three recruits, and tortured an old man to death. He was convicted by a court martial-for mutiny when he evaded arrest. He was imprisoned briefly, and then was under "open arrest." At the request of the old man's family, Marial was sent back to Yirol in 1999 and tried in a civilian court. He was convicted and sentenced to five

years in jail and fined. Several months later, however, he was freed when the SPLA ordered him to conduct more recruitment in Yirol. After he threatened his fellow officers and bragged of his untouchability, he was again punished: with a transfer from Yirol.

Defending Human Rights

No independent human rights organization existed in government-controlled areas. Independent attorneys defended those few put on trial for sabotage and conspiracy and related charges. Churches attempted to defend their parishioners' rights. The Dinka committee retrieving enslaved Dinka children was an underground human rights organization until it was incorporated into the government committee on abductions.

Human rights monitors operated in the SPLA areas of the Nuba Mountains and in the NDA area of Menza on the eastern front. There were no human rights organizations in southern rebel-held areas. The Nairobi-based South Sudan Law Society and women's organizations raised human rights issues in various forums. The Egyptian government threatened to close the Sudan Human Rights Organization in exile in Cairo following its report on slavery in Sudan.

The Role of the International Community

United States

The U.S. policy of isolating the Sudan government lost diplomatic ground following the U.S. August 1998 bombing of a Khartoum factory in retaliation for the bombing of two U.S. embassies in Africa by attackers it associated with Sudan. The U.S. refused to divulge key evidence leading it to conclude the factory possessed chemical weapons. After the factory owner sued in U.S. courts, the U.S. unfroze his U.S. assets rather than make disclosures.

A 1997 executive order imposing stiff sanctions on all financial transactions between U.S. and Sudanese persons and entities continued. The State Department accused both government and opposition forces of human rights abuses. The ambassador appointed under the 1998 International Freedom of Religion Act prepared to scrutinize Sudan.

The House of Representatives passed a resolution condemning human rights abuses by the government, and urging support for the armed opposition. The draft language regarding no-fly zones and supply of anti-aircraft guns to the SPLA was dropped from the resolution.

The U.S. president appointed a special envoy for Sudan to focus on human rights, humanitarian relief, and reinforcing the peace negotiations sponsored by the Inter-Governmental Authority on Development, an East African body. There were no U.S. diplomatic personnel based in Sudan. Because of its bombing of Khartoum, the U.S. did not take the lead on resolutions on Sudan's human rights abuses in international fora.

European Union

The German government as president of the E.U. negotiated a consensual human rights resolution with the Sudan government at the U.N. Commission on Human Rights, with the Germans arguing that it would lead to human rights improvements. The consensual agreement dropped the language of prior resolutions referring to "slavery and slavery-like practices" and "denial of the freedoms of religion, expression, association and peaceful assembly" and substituted other language: "abduction of women and children to be subjected to forced labour or similar conditions" and "cases of severe restrictions on the freedom of religion" in government areas while urging a permanent high commissioner on human rights office in Sudan.

E.U. countries rushed to do business in Sudan, particularly in the petroleum sector, despite fears that oil development would only fund more weapons acquisition. The E.U. decided to broaden its assistance from strictly emergency assistance to "humanitarianism plus." In June the French government promised to side with Sudan within the E.U. The representative of the E.U. to Sudan

noted in September that Sudan had taken practical steps that will lead to the full normalization of relations with the EU, and cited the formation of a government fact-finding committee on slavery.

The U.K. reopened its embassy, closed since anti-U.S. protesters stormed it. For unexplained reasons, criminal charges against a Sudanese doctor accused of torture in Sudan, brought in Scotland where the doctor worked in 1997, were dropped in May.

United Nations

The U.N. continued its massive emergency assistance program for Sudan. The U.N. Commission on Human Rights condemned human rights violations in Sudan in April 1999 and renewed the mandate of the special rapporteur. The U.N. Committee on Non-governmental Organizations voted to revoke the speaking privileges of the NGO Christian Solidarity International (CSI), known for its slave redemptions, after CSI calendared the SPLA rebel leader to speak on its behalf. The matter is on appeal to the U.N. Economic and Social Council.

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